



Code: IGAC
Adopted: 7/21/21

Religion and Schools

Teachers shall be permitted to teach or present to students information concerning religions and religious beliefs, but teachers shall not promote or inhibit, openly or covertly or by subtlety, a particular religion, religious belief or nonreligious belief.

Students and staff members may be excused from participating in programs or activities which are contrary to their religious beliefs without penalty.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)

[ORS 336.035](#)

U.S. Const. amend. I.

OR. CONST., art. I.

Kennedy v. Bremerton Sch. Dist., 869 F.3d 813 (9th Cir. 2017).



Code: IGAEB
Adopted: 7/21/21

Drug, Alcohol and Tobacco Prevention, Health Education**

Students have a right to attend school in an environment conducive to learning. HCCS will not tolerate the possession, selling or use of unlawful and harmful drugs (illicit drugs, nontherapeutic uses of prescribed drugs, misuse of solvents and other dangerous substances) alcohol or tobacco in the schools, on school grounds or during school-sponsored activities including athletic events, dances, field trips, etc.

After consulting with staff, parents and students, through such groups as community agencies and representatives from drug, alcohol or health service agencies, the Board will adopt a written plan for a drug, alcohol and tobacco prevention and intervention program.

Drug Prevention Program

Each classroom K-8 shall receive drug, alcohol and tobacco prevention instruction as part of the health education program.

HCCS is committed to an aggressive intervention and referral program to eliminate prohibited drug, alcohol and tobacco use.

The program shall include training for staff and a compilation of information on school and community resources and procedures for responding to drug-related medical emergencies.

Parents, students and staff shall annually receive information and detailed procedures regarding the public charter school's intervention/referral program through the school's family handbook and the staff handbook published by the school.

Each year students and parents shall receive a code of conduct explaining expected behaviors and related consequences for violations of the code of conduct which may include discipline up to and including expulsion. Students violating the code of conduct prohibiting substance abuse, possessing, selling and/or using unlawful drugs or alcohol may be subject to an assessment and, if appropriate, referred to law enforcement officials. When considering disciplinary action for a child with disabilities, the public charter school must follow the requirements of Board policy JGDA – Discipline of Students with Disabilities including those involving functional behavioral assessment, change or placement, manifestation determination and an interim alternative educational setting.

HCCS will seek funds to support the activities identified in the public charter school's drug, alcohol and tobacco prevention program.

The administrator/principal shall provide staff development activities for all employees addressing the school's drug, alcohol and tobacco prevention and intervention program or plan, the employee's responsibilities within the program or plan and current drug, alcohol and tobacco information.

HCCS will develop a public information plan for students, staff and parents.

HCCS's Drug, Alcohol and Tobacco Prevention, Health Education plan, related policies, rules and procedures will be reviewed annually and updated, as needed.

END OF POLICY

Legal Reference(s):

<u>ORS 163.575</u>	<u>OAR 581-015-2060</u>	<u>OAR 581-015-2420</u>
<u>ORS 336.067</u>	<u>OAR 581-015-2070</u>	<u>OAR 581-015-2425</u>
<u>ORS 336.222</u>	<u>OAR 581-015-2075</u>	<u>OAR 581-015-2430</u>
<u>ORS 339.873</u>	<u>OAR 581-015-2205</u>	<u>OAR 581-015-2435</u>
<u>ORS Chapter 475</u>	<u>OAR 581-015-2220</u>	<u>OAR 581-015-2440</u>
	<u>OAR 581-015-2225</u>	<u>OAR 581-015-2600</u>
<u>OAR 581-011-0052</u>	<u>OAR 581-015-2230</u>	<u>OAR 581-015-2605</u>
<u>OAR 581-015-2000</u>	<u>OAR 581-015-2235</u>	<u>OAR 581-021-0050</u>
<u>OAR 581-015-2040</u>	<u>OAR 581-015-2240</u>	<u>OAR 581-021-0055</u>
<u>OAR 581-015-2045</u>	<u>OAR 581-015-2325</u>	<u>OAR 581-022-2030</u>
<u>OAR 581-015-2050</u>	<u>OAR 581-015-2410</u>	<u>OAR 581-022-2045</u>
<u>OAR 581-015-2055</u>	<u>OAR 581-015-2415</u>	

Drug-Free Workplace Act of 1988, 41 U.S.C. §§ 8101-8106 (2012); General Principles Relating to Suspension and Debarment Actions, 34 C.F.R. §§ 84.100-84.670; 86.1-86.7 (2017).
Controlled Substances Act, 21 U.S.C. § 812 (2012); Schedules of Controlled Substances, 21 C.F.R. §§ 1308.11-1308.15 (2017).
Safe and Drug-Free Schools and Communities Act, 20 U.S.C. §§ 7101-7117 (2012).
34 C.F.R. §§ 300.108.

Cross Reference(s):

GBEC - Drug-Free Workplace



Code: **IGAI**
Adopted: 7/21/21

Human Sexuality, AIDS/HIV, Sexually Transmitted Diseases, Health Education**

HCCS shall provide an age appropriate, comprehensive plan of instruction focusing on human sexuality, HIV/AIDS and sexually transmitted infections and disease prevention in elementary and secondary schools as an integral part of health education and other subjects. Course material and instruction for all human sexuality education courses that discuss human sexuality shall enhance a student's understanding of sexuality as a normal and healthy aspect of human development. A part of the comprehensive plan of instruction shall provide age-appropriate child sexual abuse prevention instruction for students in kindergarten through grade 8. The school must provide a minimum of four instructional sessions annually; one instructional session is equal to one standard class period. In addition, the HIV/AIDS and sexually transmitted infections and disease prevention education and the human sexuality education comprehensive plan shall provide adequate instruction at least annually, for all students in grades 6 through 8.

Parents, teachers, school administrators, local health departments staff, other community representatives and persons from the medical community who are knowledgeable of the latest scientific information and effective education strategies shall develop the plan of instruction and align it with the Oregon Health Education Standards and Benchmarks.

The HCCS Board shall approve the plan of instruction and require that it be reviewed and updated biennially in accordance with new scientific information and effective educational strategies.

Parents of minor students shall be notified in advance of any human sexuality or AIDS/HIV instruction. Any parent may request that their child be excused from that portion of the instructional program under the procedures set forth in Oregon Revised Statute (ORS) 336.035(2).

The comprehensive plan of instruction shall include the following information that:

1. Promotes abstinence for school age youth and mutually monogamous relationships with an uninfected partner for adults;
2. Allays those fears concerning HIV that are scientifically groundless;
3. Is balanced and medically accurate;
4. Provides balanced, accurate information and skills-based instruction on risks and benefits of contraceptives, condoms and other disease reduction measures;
5. Discusses responsible sexual behaviors and hygienic practices which may reduce or eliminate unintended pregnancy, exposure to HIV, hepatitis B/C and other sexually transmitted infections and diseases;

6. Stresses the risks of behaviors such as the sharing of needles or syringes for injecting illegal drugs and controlled substances;
7. Discusses the characteristics of the emotional, physical and psychological aspects of a healthy relationship;
8. Discusses the benefits of delaying pregnancy beyond the adolescent years as a means to better ensure a healthy future for parents and their children. The student shall be provided with statistics based on the latest medical information regarding both the health benefits and the possible side effects of all forms of contraceptives including the success and failure rates for prevention of pregnancy, sexually transmitted infections and diseases;
9. Stresses that HIV/STDs and hepatitis B/C can be possible hazards of sexual contact;
10. Provides students with information about Oregon laws that address young people's rights and responsibilities relating to childbearing and parenting;
11. Advises students of consequences of having sexual relations with persons younger than 18 years of age to whom they are not married;
12. Encourages family communication and involvement and helps students learn to make responsible, respectful and healthy decisions;
13. Teaches that no form of sexual expression or behavior is acceptable when it physically or emotionally harms oneself or others and that it is wrong to take advantage of or exploit another person;
14. Teaches that consent is an essential component of healthy sexual behavior. Course material shall promote positive attitudes and behaviors related to healthy relationships and sexuality, and encourage active student bystander behavior;
15. Teaches students how to identify and respond to attitudes and behaviors which contribute to sexual violence;
16. Validates the importance of one's honesty, respect for each person's dignity and well-being, and responsibility for one's actions;
17. Uses inclusive materials and strategies that recognizes different sexual orientations, gender identities and gender expression;
18. Includes information about relevant community resources, how to access these resources, and the laws that protect the rights of minors to anonymously access these resources; and
19. Is culturally inclusive.

The comprehensive plan of instruction shall emphasize skills-based instruction that:

1. Assists students to develop and practice effective communication skills, development of self-esteem and ability to resist peer pressure;
2. Provides students with the opportunity to learn about and personalize peer, media, technology and community influences that both positively and negatively impact their attitudes and decisions related to healthy sexuality, relationships and sexual behaviors, including decisions to abstain from sexual intercourse;
3. Enhances students' ability to access valid health information and resources related to their sexual health;
4. Teaches how to develop and communicate sexual and reproductive boundaries;
5. Is research based, evidence based or best practice; and
6. Aligns with the Oregon Health Education Content Standards and Benchmarks.

All sexuality education programs emphasize that abstinence from sexual intercourse, when practiced consistently and correctly, is the only 100 percent effective method against unintended pregnancy, sexually transmitted HIV and hepatitis B/C infection and other sexually transmitted infections and diseases.

Abstinence is to be stressed, but not to the exclusion of contraceptives and condoms for preventing unintended pregnancy, HIV infection, hepatitis B/C infection and other sexually transmitted infections and diseases. Such courses are to acknowledge the value of abstinence while not devaluing or ignoring those students who have had or are having sexual relationships. Further, sexuality education materials, including instructional strategies, and activities must not, in any way use shame or fear-based tactics.

Materials and information shall be presented in a manner sensitive to the fact that there are students who have experienced, perpetrated or witnessed sexual abuse and relationship violence.

END OF POLICY

Legal Reference(s):

[ORS 336.035](#)
[ORS 336.107](#)
[ORS 336.455 - 336.475](#)

[ORS 339.370 - 339.400](#)
[OAR 581-021-0009](#)

[OAR 581-022-2050](#)
[OAR 581-022-2220](#)



Code: IGBAB/JO-AR
Adopted: 7/21/21

Education Records/Records of Students with Disabilities Management

1. Student Education Record

Student education records are those records that are directly related to a student and maintained by the public charter school, or by a party acting for the public charter school; however, this does not include the following:

- a. Records of instructional, supervisory and administrative personnel and educational personnel ancillary to those persons that are kept in the sole possession of the maker of the record, used only as a personal memory aid, and are not accessible or revealed to any other person except a temporary substitute for the maker of the record;
- b. Records of the law enforcement unit of the public charter school subject to the provisions of Oregon Administrative Rule (OAR) 581-021-0225;
- c. Records relating to an individual who is employed by the public charter school that are made and maintained in the normal course of business that relate exclusively to the individual in that individual's capacity as an employee and that are not available for use for any other purpose. Records relating to an individual in attendance at HCCS who is employed as a result of the individual's status as a student, are education records and are not accepted under this section;
- d. Records on a student who is 18 years of age or older, or is attending an institution of postsecondary education, that are:
 - (1) Made or maintained by a physician, psychiatrist, psychologist or other recognized professional or paraprofessional acting in their professional capacity or assisting in a paraprofessional capacity;
 - (2) Made, maintained or used only in connection with treatment of the student; and
 - (3) Disclosed only to individuals providing the treatment. For purposes of this definition, "treatment" does not include remedial educational activities or activities that are part of the program of instruction at the school.
- e. Records that only contain information relating to activities in which an individual engaged after the individual is no longer a student at HCCS;
- f. Medical or nursing records which are made or maintained separately and solely by a licensed health care professional who is not employed by the public charter school, and which are not used for education purposes or planning.

HCCS shall keep and maintain a permanent record on each student which includes the:

- a. Name and address of educational agency or institution;
- b. Full legal name of the student;

- c. Student birth date and place of birth;
- d. Name of parents;
- e. Date of entry in school;
- f. Name of school previously attended;
- g. Courses of study and marks received;
- h. Data documenting a student's progress toward achievement of state standards and must include a student's Oregon State Assessment results;
- i. Credits earned;
- j. Attendance;
- k. Date of withdrawal from school; and
- l. Such additional information as the public charter school may prescribe.

The school may also request the social security number of the student and will include the social security number on the permanent record only if the eligible student or parent complies with the request. The request shall include notification to the eligible student or the student's parent(s) that the provision of the social security number is voluntary and notification of the purpose for which the social security number will be used.

The school shall retain permanent records in a minimum one-hour fire-safe place in the school, or keep a duplicate copy of the permanent records in a safe depository in another public charter school location.

2. Confidentiality of Student Records

- a. HCCS shall keep confidential any record maintained on a student in accordance with OAR 581-021-0220 through 581-021-0430.
- b. The school shall protect the confidentiality of personally identifiable information at collection, storage, disclosure and destruction stages.
- c. The school shall identify one official to assume responsibility for ensuring the confidentiality of any personally identifiable information.
- d. All persons collecting or using personally identifiable information shall receive training or instruction on state policies and procedures.

3. Rights of Parents and Eligible Students

HCCS shall annually notify parents and eligible students through the school handbook or any other means that are reasonably likely to inform the parents or eligible students of their rights. This notification shall state that the parent(s) or an eligible student has a right to:

- a. Inspect and review the student's education records;
- b. Request the amendment of the student's education records to ensure that they are not inaccurate, misleading or otherwise in violation of the student's privacy or other rights;
- c. Consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that the applicable state or federal law authorizes disclosure without consent;
- d. Pursuant to OAR 581-021-0410, file with the Family Policy Compliance Office, United States Department of Education a complaint under 34 C.F.R. § 99.64 concerning alleged failures by the public charter school to comply with the requirements of federal law; and

- e. Obtain a copy of the public charter school policy with regard to student education records.

The notification shall also inform parents or eligible students that the public charter school forwards education records requested under OAR 581-021-0255. The notification shall also indicate where copies of the school policy are located and how copies may be obtained.

If the eligible student or the student's parent(s) has a primary or home language other than English, or has a disability, the public charter school shall provide effective notice.

These rights shall be given to either parent unless the public charter school has been provided with specific written evidence there is a court order, state statute or legally binding document relating to such matters as divorce, separation or custody that specifically revokes these rights.

When a student becomes an eligible student, which is defined as a student who has reached 18 years of age or is attending only an institution of postsecondary education and is not enrolled in a secondary school, the rights accorded to, and the consent required of, the parents transfer from the parents to the student. Nothing prevents the public charter school from giving students rights in addition to those given to parents.

4. Parent's or Eligible Student's Right to Inspect and Review

HCCS shall permit an eligible student or student's parent(s) or a representative of a parent or eligible student, if authorized in writing by the eligible student or student's parent(s), to inspect and review the education records of the student, unless the education records of a student contain information on more than one student. In that case the eligible student or student's parent(s) may inspect, review or be informed of only the specific information about the student.

The school shall comply with a request for access to records:

- a. Within a reasonable period of time and without unnecessary delay;
- b. For children with disabilities before any meeting regarding an individualized education program (IEP), or any due process hearing, or any resolution session related to a due process hearing;
- c. In no case more than 45 days after it has received the request.

The school shall respond to reasonable requests for explanations and interpretations of the student's education record.

The parent(s) or an eligible student shall comply with the following procedure to inspect and review a student's education record:

- a. Provide a written, dated request to inspect a student's education record; and
- b. State the specific reason for requesting the inspection.

The written request will be permanently added to the student's education record.

The school shall not destroy any education record if there is an outstanding request to inspect and review the education record.

While the school is not required to give an eligible student or student's parent(s) access to treatment records under the definition of "education records" in OAR 581-021-0220(6)(b)(D), the eligible student or student's parent(s) may, at their expense, have those records reviewed by a physician or other appropriate professional of their choice.

If an eligible student or student's parent(s) so requests, the school shall give the eligible student or student's parent(s) a copy of the student's education record. The school may recover a fee for providing a copy of the record, but only for the actual costs of reproducing the record unless the imposition of a fee effectively prevents a parent or eligible student from exercising the right to inspect and review the students' educational records. The school may not charge a fee to search for or to retrieve the education records of a student.

The school shall not provide the eligible student or student's parent(s) with a copy of test protocols, test questions and answers and other documents described in Oregon Revised Statutes (ORS) 192.345(4) unless authorized by federal law.

The school will maintain a list of the types and locations of education records maintained by the school and the titles and addresses of officials responsible for the records.

Students' education records will be maintained at the school building at which the student is in attendance except for special education records which may be located at another designated location within the school or the district¹. The administrator/principal or designee shall be the person responsible for maintaining and releasing the education records.

5. Release of Personally Identifiable Information

Personally identifiable information shall not be released without prior written consent of the eligible student or student's parent(s) except in the following cases:

- a. The disclosure is to other school officials, including teachers, within HCCS or district who have a legitimate educational interest.

As used in this section, "legitimate educational interest" means a public charter school or district¹ official employed by the school or district as an administrator, supervisor, instructor or staff support member; a person serving on a public charter school or district board; a person or company with whom the school or district has contracted to perform a special task; or a parent or student serving on a special committee such as a disciplinary or grievance committee, or assisting another public charter school or district official in performing tasks needed to review an educational record in order to fulfill their professional responsibility (definition from FERPA).

The school shall maintain, for public inspection, a listing of the names and positions of individuals within the school or district¹ who have access to personally identifiable information with respect to students with disabilities.

¹ "District," for the purpose of this policy, means the district in which the public charter school is located.

- b. The disclosure is to officials of another school within the district¹;
- c. The disclosure is to authorized representatives

in connection with an audit or evaluation of federal or state-supported education programs or the enforcement of or compliance with federal or state-supported education programs or the enforcement of or compliance with federal or state regulations.

- d. The disclosure is in connection with financial aid for which the student has applied or which the student has received, if the information is necessary for such purposes as to:
 - (1) Determine eligibility for the aid;
 - (2) Determine the amount of the aid;
 - (3) Determine the conditions for the aid; or
 - (4) Enforce the terms and condition of the aid.

As used in this section “financial aid” means any payment of funds provided to an individual that is conditioned on the individual’s attendance at an educational agency or institution.

- e. The disclosure is to organizations conducting studies for, or on behalf of, the district to:
 - (1) Develop, validate or administer predictive tests;
 - (2) Administer student aid programs; or
 - (3) Improve instruction.
- f. The school may disclose information under this section only if disclosure is to an official listed in paragraph (c) above and who enters into a written agreement with the district that:
 - (1) Specifies the purpose, scope and duration of the study and the information to be disclosed;
 - (2) Limits the organization to using the personally identifiable information only for the purpose of the study;
 - (3) The study is conducted in a manner that does not permit personal identification of parents or students by individuals other than representatives of the organization; and
 - (4) The information is destroyed when no longer needed for the purposes for which the study was conducted.

For purposes of this section, the term “organization” includes, but is not limited to, federal, state and local agencies and independent organizations.

The district may disclose information under this section only if the disclosure is to an official listed in paragraph (c) above who is conducting an audit related to the enforcement of or compliance with federal or state legal requirements and who enters into a written agreement with the district that:

- (1) Designates the individual or entity as an authorized representative;
- (2) Specifies the personally identifiable information being disclosed;
- (3) Specifies the personally identifiable information being disclosed in the furtherance of an audit, evaluation or enforcement or compliance activity of the federal or state supported education programs;

- (4) Describes the activity with sufficient specificity to make clear it falls within the audit or evaluation exception; this must include a description of how the personally identifiable information will be used;
 - (5) Requires information to be destroyed when no longer needed for the purpose for which the study was conducted;
 - (6) Identifies the time period in which the personally identifiable information must be destroyed; and
 - (7) Establishes policies and procedures which are consistent with Family Education Rights and Privacy Act (FERPA) and other federal and state confidentiality and privacy provisions to insure the protection of the personally identifiable information from further disclosure and unauthorized use.
- g. The disclosure is to accrediting organizations to carry out their accrediting functions;
 - h. The disclosure is to comply with a judicial order or lawfully issued subpoena. The school may disclose information under this section only if the school makes a reasonable effort to notify the eligible student or student's parent(s) of the order or subpoena in advance of compliance, unless an order or subpoena of a federal court or agency prohibits notification to the parent(s) or student;
 - i. The disclosure is to comply with a judicial order or lawfully issued subpoena when the parent is a party to a court proceeding involving child abuse and neglect or dependency matters;
 - j. The disclosure is to the parent(s) of a dependent student, as defined in Section 152 of the Internal Revenue Code of 1986;
 - k. The disclosure is in connection with a health or safety emergency. The school shall disclose personally identifiable information from an education record to law enforcement, child protective services and health care professionals, and other appropriate parties in connection with a health and safety emergency if knowledge of the information is necessary to protect the health and safety of the student or other individuals.

As used in this section a "health or safety emergency" includes, but is not limited to, law enforcement efforts to locate a child who may be a victim of kidnap, abduction or custodial interference and law enforcement or child protective services efforts to respond to a report of abuse of a child or neglect pursuant to applicable state law.

- l. The disclosure is information the district has designated as "directory information" (See Board policy JOA – Directory Information);
- m. The disclosure is to the parent(s) of a student who is not an eligible student or to an eligible student;
- n. The disclosure is to officials of another school, school system, institution of postsecondary education, an education service district (ESD), state regional program or other educational agency that has requested the records and in which the student seeks or intends to enroll or is enrolled or in which the student receives services. The term "receives services" includes, but is not limited to, an evaluation or reevaluation for purposes of determining whether a student has a disability;
- o. The disclosure is to the Board during an executive session pursuant to ORS 332.061.

The school will use reasonable methods to identify and authenticate the identity of the parents, students, school officials and any other parties to whom the school discloses personally identifiable information from educational records;

- p. The disclosure is to a caseworker or other representative of a state or local child welfare agency or tribal organization that are legally responsible for the care and protection of the student, including educational stability of children in foster care.

6. Record-Keeping Requirements

HCCS shall maintain a record of each request for access to and each disclosure of personally identifiable information from the education records of each student. Exceptions to the record keeping requirements shall include the parent, eligible student, school official or his/her designee responsible for custody of the records and parties authorized by state and federal law for auditing purposes. The school shall maintain the record with the education records of the student as long as the records are maintained. For each request or disclosure the record must include:

- a. The party or parties who have requested or received personally identifiable information from the education records; and
- b. The legitimate interests the parties had in requesting or obtaining the information.

The following parties may inspect the record of request for access and disclosure to a student's personally identifiable information:

- a. The parent(s) or an eligible student;
- b. The school official or his/her designee who are responsible for the custody of the records;
- c. Those parties authorized by state or federal law for purposes of auditing the record keeping procedures of the school.

7. Request for Amendment of Student's Education Record

If an eligible student or student's parent(s) believes the education records relating to the student contain information that is inaccurate, misleading or in violation of the student's rights of privacy or other rights, he/she may ask the administrator where the record is maintained to amend the record.

The administrator shall decide, after consulting with the necessary staff, whether to amend the record as requested within a reasonable time after the request to amend has been made.

The request to amend the student's education record shall become a permanent part of the student's education record.

If the administrator decides not to amend the record as requested, the eligible student or the student's parent(s) shall be informed of the decision and of his/her right to appeal the decision by requesting a hearing.

8. Hearing Rights of Parents or Eligible Students

If the administrator decides not to amend the education record of a student as requested by the eligible student or the student's parent(s), the eligible student or student's parent(s) may request a formal hearing for the purpose of challenging information in the education record as inaccurate, misleading or in violation of the privacy or other rights of the student. HCCS shall appoint a hearings officer to conduct the formal hearing requested by the eligible student or student's parent. The hearing may be conducted by any individual, including an official of the school, who does not

have a direct interest in the outcome of the hearing. The hearings officer will establish a date, time and location for the hearing, and give the student's parent or eligible student notice of date, time and location reasonably in advance of the hearing. The hearing will be held within 10 working days of receiving the written or verbal request for the hearing.

The hearings officer will convene and preside over a hearing panel consisting of:

- a. The administrator or designee;
- b. A member chosen by the eligible student or student's parent(s); and
- c. A disinterested, qualified third party appointed by the administrator.

The parent or eligible student may, at his/her own expense, be assisted or represented by one or more individuals of his/her own choice, including an attorney. The hearing shall be private. Persons other than the student, parent, witnesses and counsel shall not be admitted. The hearings officer shall preside over the panel. The panel will hear evidence from the school staff and the eligible student or student's parent(s) to determine the point(s) of disagreement concerning the records. Confidential conversations between a licensed employee or public charter school or district counselor and a student shall not be part of the records hearing procedure. The eligible student or student's parent(s) has the right to insert written comments or explanations into the record regarding the disputed material. Such inserts shall remain in the education record as long as the education record or a contested portion is maintained and exists. The panel shall make a determination after hearing the evidence and make its recommendation in writing within 10 working days following the close of the hearing. The panel will make a determination based solely on the evidence presented at the hearing and will include a summary of the evidence and the reason for the decision. The findings of the panel shall be rendered in writing not more than 10 working days following the close of the hearing and submitted to all parties.

If, as a result of the hearing, the panel decides that the information in the education record is not inaccurate, misleading or otherwise in violation of the privacy or other rights of the student, it shall inform the eligible student or the student's parent(s) of the right to place a statement in the record commenting on the contested information in the record or stating why he/she disagrees with the decision of the panel. If a statement is placed in an education record, the school will ensure that the statement:

- a. Is maintained as part of the student's records as long as the record or a contested portion is maintained by the school or the district²; and
- b. Is disclosed by the school to any party to whom the student's records or the contested portion are disclosed.

If, as a result of the hearing, the panel decides that the information is inaccurate, misleading or otherwise in violation of the privacy or other rights of the student, it shall:

- a. Amend the record accordingly; and
- b. Inform the eligible student or the student's parent(s) of the amendment in writing.

² Ibid. p. 4.

9. Duties and Responsibilities When Requesting Education Records

HCCS shall, within 10 days of a student seeking initial enrollment in or services from the school, notify the public or private school, ESD, institution, agency or detention facility or youth care center in which the student was formerly enrolled and shall request the student's education records.

10. Duties and Responsibilities When Transferring Education Records

HCCS shall transfer originals of all requested student education records, including any ESD records, relating to the particular student to the new educational agency when a request to transfer the education records is made to the school. The transfer shall be made no later than 10 days after receipt of the request. For students in substitute care programs, the transfer must take place within five days of a request. Readable copies of the following documents shall be retained:

- a. The student's permanent records, for one year;
- b. Such special education records as are necessary to document compliance with state and federal audits, for five years after the end of the school year in which the original was created. In the case of records documenting speech pathology and physical therapy services, until the student reaches age 21 or 5 years after last seen, whichever is longer.

Note: Education records shall not be withheld for student fees, fines and charges if requested in circumstances described in ORS 326.575 and applicable rules of the State Board of Education or such records are requested for use in the appropriate placement of a student.

Disclosure Statement

Required for use in collecting personally identifiable information
related to social security numbers.

On any form that requests the social security number (SSN), the following statement shall appear just above the space for the SSN:

“Providing your social security number (SSN) is voluntary. If you provide it, the public charter school will use your SSN for record keeping, research, and reporting purposes only. The public charter school will not use your SSN to make any decision directly affecting you or any other person. Your SSN will not be given to the general public. If you choose not to provide your SSN, you will not be denied any rights as a student. Please read the statement on the back of this form that describes how your SSN will be used. Providing your SSN means that you consent to the use of your SSN in the manner described.”

The public charter school, district and Oregon Department of Education may also match your SSN with records from other agencies as follows:

The Oregon Department of Education uses information gathered from the Oregon Employment Division to learn about education, training and job market trends. The information is also used for planning, research and program improvement.

State and private universities, colleges, community colleges and vocational schools use the information to find out how many students go on with their education and their level of success.

Other state agencies use the information to help state and local agencies plan educational and training services to help Oregon citizens get the best jobs available.

Your SSN will be used only for statistical purposes as listed above. State and federal law protects the privacy of your records.



Code: IGBAB/JO
Adopted: 7/21/21

Education Records/Records of Students with Disabilities**

Education records are those records maintained by HCCS that are directly related to a student.

The primary reason for the keeping and maintaining of education records for students is to help the individual student in their educational development by providing pertinent information for the student, their teachers and their parents. These records also serve as an important source of information to assist students in seeking productive employment and/or post-high school education.

HCCS shall maintain confidential education records of students in a manner that conforms with state and federal laws and regulations.

Information recorded on official education records should be carefully selected, accurate, verifiable and should have a direct and significant bearing upon the student's educational development.

Records requested by another district or public charter school to determine a student's appropriate placement may not be withheld.

HCCS annually notifies parents or adult students that it forwards educational records requested by an educational agency or institution in which the student seeks to enroll or receive services, including special education evaluation services.

HCCS shall comply with a request from parents or an adult student to inspect and review records without unnecessary delay. The school provides to parents of a student with a disability or to an adult student with a disability the opportunity at any reasonable time to examine all of the records of the public charter school pertaining to the student's identification, evaluation, educational placement and free appropriate public education. The school provides parents or an adult student, on request, a list of the types and locations of education records collected, maintained and used by the school. The school may recover a fee for providing a copy of the record.

HCCS annually notifies parents of all students, including adult students, currently in attendance that they have to right to:

1. Inspect and review the student's records;
2. Request the amendment of the student's educational records to ensure that they are not inaccurate, misleading or otherwise in violation of the student's privacy or other rights;
3. Consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that the student educational record rules authorize disclosure without consent. (See Board policy JOB – Personally Identifiable Information);

4. File with the U.S. Department of Education a complaint concerning alleged failures by the public charter school to comply with the requirements of the Family Educational Rights and Privacy Act; and
5. Obtain a copy of the public charter school's education records policy.

HCCS's notice includes criteria for determining legitimate educational interest and the criteria for determining which school officials within the agency have legitimate educational interests. School officials may also include a volunteer or contractor who performs an institutional service on behalf of the school.

HCCS annually notifies parents and adult students of what it considers to be directory information and the disclosure of such. (See Board policy JOA – Directory Information).

HCCS shall give full rights to education records to either parent, unless the public charter school has been provided legal evidence that specifically revokes these rights. Once the student reaches age 18 those rights transfer to the student.

A copy of this policy and administrative regulation shall be made available upon request to parents and students 18 years of age or older or an emancipated student and the general public.

END OF POLICY

Legal Reference(s):

ORS 30.864	ORS 338.115(a)	OAR 166-400-0010 to 166-400-0065
ORS 107.154	ORS 339.270	OAR 581-021-0220 to -0430
ORS 326.565	ORS 343.177(3)	OAR 581-022-2260
ORS 326.575		OAR 581-022-2270

Individuals with Disabilities Education Act (IDEA), 20 U.S.C. §§ 1400-1419 (2012).

Family Educational Rights and Privacy Act of 1974, 20 U.S.C. § 1232g (2012); Family Educational Rights and Privacy, 34 C.F.R. Part 99 (2017).

Assistance to States for the Education of Children with Disabilities, 34 C.F.R. § 300.501 (2017).

Cross Reference(s):

JO/IGBAB - Education Records/Records of Students with Disabilities

JOA - Directory Information

JOB - Personally Identifiable Information

JN - Student Fees, Fines and Charges



Code: IGDA-AR
Revised/Reviewed: 5/15/19; 7/21/21
Orig. Code: G-23

Organization of HCCS Clubs and Teams

The following requirements and guidelines shall apply to the organization and function of permitted HCCS clubs and teams:

1. The membership of HCCS teams and clubs is limited to current HCCS students unless approved by the administrator/principal and/or the private program director. All members and team or club coaches or leads of HCCS teams and clubs will comply with the HCCS code of conduct.
2. HCCS teams and clubs may not discriminate against any potential member, lead or coach in accordance with Board policy AC - Nondiscrimination with the exception of age and/or class grade.
3. Any adult coach or lead is required to comply with criminal records check requirements outlined in Board policy GCDA/GDDA - Criminal Records Checks and Fingerprinting. Volunteers under the age of 18 must be under the direct supervision of an adult coach or lead at all times.
4. When the club or team participants travel to a competition or an event, a permission and liability waiver must be signed by parents of participating members and adult drivers must provide proof of vehicle insurance and comply with other requirements found in Board policy EEAE - Student Transportation in a Private Vehicle and submit the Proof of Vehicle Liability Insurance Form found in EEAE-AR - Proof of Vehicle Liability Insurance.
5. Teams and clubs may use HCCS space free of charge and must conduct their meetings or practices on school property and shall schedule space in advance in accordance with Board policy KG - Use of School Facilities. Tournaments, games, meets, or contests sponsored by an HCCS team or club will comply with requirements of Board policy KG - Use of School Facilities and applicable costs for facility use. Normal class activities shall not be interrupted.
6. HCCS teams and clubs will not receive funds from HCCS for any expenses or have money advanced. Any contributions collected by the team or club will be submitted to the HCCS main office with a proposed/expected team or club budget. The team or club lead will work with the private program director and business manager to expense team or club costs.
7. Funds may be carried over year to year. To carry over remaining funds to the next academic year, the team or club coach or lead must submit a proposed budget to the private program director by the last day of the current school year. The proposed budget must be approved by the team or club membership within 30 days of start of school in the subsequent school year to confirm carry over. The enrichment programs coordinator will be notified of such approval. Any funds not confirmed will not be carried over to the team or club and will become part of the HCCS general funds.

8. HCCS teams may have tryouts and limit their membership. Tryouts and team selection will have a defined written and objective procedure if membership is limited by performance, age and/or class or grade.
9. HCCS clubs and teams are required to comply with HCCS branding guidelines. All club and team t-shirts and other clothing, or materials must be approved by the administrator/principal or designee in compliance with current HCCS branding guidelines.
10. HCCS follows Beaverton School District Inclement Weather Closure Policy, therefore if school is cancelled at HCCS, all HCCS before- or after-school club and team activities will be cancelled.



Code: IGDA
Adopted: 5/15/19
Revised/Readopted: 7/21/21
Orig. Code: G-23

Organization of HCCS Clubs and Teams

Hope Chinese Charter School (HCCS) supports the development of school clubs and teams. All HCCS clubs and teams will contribute to, or further, the mission and vision of HCCS. All HCCS clubs and teams will submit a proposal to the administrator/principal with a description of the club or team including the goals of the program. The administrator/principal is responsible for approving all clubs and teams.

Definitions

Club: A group of students, will have an adult lead or coach, which is organized for a social, literary, athletic, or other purpose and is non-competitive in nature.

Lead or Coach: The designated leader or other person that is responsible for ensuring the team or club's adherence to the mission and/or financial oversight.

Team: A group of students, which will have an adult lead or coach, which seeks to train and practice to compete in contests, tournaments, or games.

The administrator/principal or designee will develop guidelines to implement policy.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)
[ORS 339.880](#)

[ORS 339.885](#)
[OAR 581-021-0050](#)

[OAR 581-021-0055](#)

Equal Access Act, 20 U.S.C. §§ 4071-4074 (2012).

Lamb's Chapel v. Center Moriches Unified Sch. Dist., 508 U.S. 384 (1993).

Westside Cmty. Bd. of Educ. v. Mergens, 496 U.S. 226 (1990).



Code: IGDF-AR
Revised/Reviewed: 7/21/21

Fund-Raising Activity Request and Verification

Please fill out all sections and return to the administrator or designee 30 days prior to initiating the fund-raising activity.

Date: _____

Name of individual, group or activity making this fund-raising activity request: _____

Reason for the fund raiser (please be specific): _____

Description of fund raiser¹ (i.e., what is the product, when will it be sold, where will it be sold, who will it be sold to, etc.): _____

Start and end dates for the fund raiser: _____

Anticipated revenue: _____

If this is a joint fund raiser, write down the name(s) of the partner(s): _____

Signature of Individual

Signature - Representative of Organization

☐ Approved – Date: _____

☐ Not Approved – Date: _____

Reason for Denial: _____

¹ If fund raising consists of selling food and beverage items to students during the regular or extended school day, the food and beverage items must comply with state and federal nutrition standards, rules and laws. This does not apply to food and beverage items sold at school-related or non-school-related events for which parents and other adults are a significant part of the audience. (ORS 336.423)

Signature of Staff Activity Advisor

Date

Signature of Administrator/Principal

Date

Hope Chinese Charter School

Fund-Raising Activity (Sale of Product) Verification Form

Date: _____

To Whom it May Concern:

The Hope Chinese Charter School does hereby authorize:

(Name of Individual or Group Receiving Authorization)

to sell _____,
(Name of Product/Item for Sale)

for the purpose of raising funds for _____,
(Funds to be Used for)

from (dates) _____ to _____.

Signature of Person Authorizing Sales

Date

Signature of Director of Operations

Date

Any questions regarding this fund-raising activity should be directed to the person authorizing sales.



Code: IGDF
Adopted: 7/21/21

Student Fund-Raising Activities

Students may carry out fund-raising activities in which no outside fund-raising agency or contract is used with permission of the administrator/principal and under the direct supervision of the appropriate adviser. Where funds are to be raised through an outside agency or contracted activity, the activity must receive prior approval from the administrator/principal.

Activities that include fund-raising for charitable or other causes not relating to school activities, must obtain prior approval from the administrator/principal.

A student or staff member may not solicit funds in the name of HCCS through the use of internet-based or crowd-funding types of fund-raising, without the approval of the administrator/ principal.

Fund-raising projects involving the sale of products must be approved by the staff advisor and by the director of operations before the activity is initiated. Solicitation of funds is expressly prohibited without the administrator's/principal's consent.

If fund-raising consists of selling food and beverage items to students during the regular or extended school day, the food and beverage items must comply with state nutrition standards, rules and laws. This does not apply to food and beverage items sold at school-related or nonschool-related events for which parents and other adults are a significant part of the audience.

END OF POLICY

Legal Reference(s):

[ORS 336.423](#)
[ORS 339.880](#)

[OAR 137-025-0020 to -0530](#)
[OAR 581-022-2660\(2\)](#)

Federal Smart Snacks in School Rules, 7 C.F.R. Part 210.11 (2017).



Code: IIBGA-AR
Revised/Reviewed: 7/21/21

Electronic Communications System

Definitions

1. “Technology protection measure,” as defined by the Children’s Internet Protection Act (CIPA), means a specific technology that blocks or filters Internet access to visual depictions that are:
 - a. “Obscene,” has the meaning given such term in Section 1460 of Title 18, United States Code;
 - b. “Child pornography,” has the meaning given such term in Section 2256 of Title 18, United States Code; or
 - c. Harmful to minors.
2. “Harmful to minors,” as defined by CIPA, means any picture, image, graphic image file or other visual depiction that:
 - a. Taken as a whole and with respect to minors, appeals to a prurient interest in nudity, sex or excretion;
 - b. Depicts, describes or represents, in a patently offensive way with respect to what is suitable for minors, an actual or simulated sexual act or sexual contact, actual or simulated normal or perverted sexual acts, or a lewd exhibition of the genitals; and
 - c. Taken as a whole, lacks serious literary, artistic, political or scientific value to minors.
3. “Sexual act and sexual contact,” as defined by CIPA, have the meanings given such terms in Section 2246 of Title 18, United States Code.
4. “Minor,” as defined by CIPA, means an individual who has not attained the age of 17. For the purposes of Board policy and this administrative regulation, minor will include all students enrolled in HCCS.
5. “Inappropriate matter,” as defined by HCCS, means material that is inconsistent with general public education purposes and HCCS’s vision, mission and goals, as determined by HCCS.
6. “Public charter school proprietary information” is defined by HCCS as any information created, produced or collected by school staff for the business or education purposes of the school including but not limited to student information, staff information, parent or patron information, curriculum, forms and like items used to conduct the school’s business.
7. “School software” is defined by HCCS as any commercial or staff developed software acquired using school resources.

General Public Charter School Responsibilities

HCCS will:

1. Designate staff as necessary to ensure coordination and maintenance of HCCS's electronic communications system which includes all public charter school computers, e-mail and Internet access;
2. Provide staff training in the appropriate use of HCCS's electronic communications system including copies of public charter school policy and administrative regulations. Staff will provide similar training to authorized system users;
3. Allow staff use of personal electronic devices to access the school's electronic communications system when it is consistent with school board policies and administrative regulations (See Staff User Agreement);
4. Provide a system for authorizing staff use of personal electronic devices to download or access public charter school proprietary information that ensures the protections of said information in accordance with board policy. The school will provide a system for obtaining prior written agreement from staff for the recovery of public charter school proprietary information downloaded to staff personal electronic devices as necessary to accomplish public charter school purposes, obligations or duties, and when the use on the personal electronic device is no longer authorized, to ensure verification that information downloaded has been properly removed from the personal electronic device; (See Staff User Agreement)
5. Cooperate fully with local, state or federal officials in any investigation relating to misuse of HCCS's electronic communications system;
6. Use only properly licensed software, audio or video media purchased by HCCS or approved for use by the school. The school will comply with the requirements of law regarding the use, reproduction and distribution of copyrighted works and with applicable provisions of use or license agreements;
7. Install and use server virus detection and removal software;
8. Provide technology protection measures that protect against Internet access by both adults and minors to visual depictions that are obscene, child pornography, or with respect to the use of computers by minors, harmful to minors. A supervisor or other individual authorized by the administrator may disable the technology protection measures to enable access for bona fide research or other lawful purposes, as deemed appropriate;
9. Prohibit access by minors to inappropriate matter on the Internet and World Wide Web;
10. Provide staff supervision to monitor the online activities of students to prevent unauthorized access, including "hacking" and other unlawful activities online, and ensure the safety and security of minors when authorized to use e-mail, social media, chat rooms, applications and other forms of direct electronic communication;
11. Provide student education about appropriate online behavior, including cyberbullying awareness and response, and how to interact with other individuals on social networking and social media websites, applications and in chat rooms;

12. Determine which users and sites, accessible as part of HCCS's electronic communications system, are most applicable to the curricular needs of HCCS and may restrict user access accordingly;
13. Determine which users will be provided access to HCCS's electronic communications system;
14. Notify appropriate system users that:
 - a. HCCS retains ownership and control of its computers, hardware, software and data at all times. All communications and stored information transmitted, received or contained in HCCS's information system are HCCS's property and are to be used for authorized purposes only. Use of public charter school equipment or software for unauthorized purposes is strictly prohibited. To maintain system integrity, monitor network etiquette and ensure that those authorized to use HCCS's system are in compliance with Board policy, administrative regulations and law, the school administrators may routinely review user files and communications;
 - b. Files and other information, including e-mail, sent or received, generated or stored on public charter school servers are not private and may be subject to monitoring. By using HCCS's system, individuals consent to have that use monitored by authorized public charter school personnel. HCCS reserves the right to access and disclose, as appropriate, all information and data contained on public charter school computers and public charter school-owned e-mail system;
 - c. HCCS may establish a retention schedule for the removal of e-mail;
 - d. E-mail sent or received by a Board member or employee in connection with the transaction of public business may be a public record and subject to state archivist rules for retention and destruction;
 - e. Information and data entered or stored on HCCS's computers and e-mail system may be subject to disclosure if a public records request is made or a lawsuit is filed against HCCS. "Deleted" or "purged" data from public charter school computers or e-mail system may be retrieved for later public records disclosure or disciplinary purposes, as deemed necessary by HCCS;
 - f. Passwords used on HCCS's electronic communications system will be changed at 180-day (or six months) intervals;
 - g. Transmission of any communications or materials related to activities prohibited by ORS 260.432 is not allowed.
15. Ensure all student, staff and nonschool system users complete and sign an agreement to abide by HCCS's electronic communications system policy and administrative regulations. All such agreements will be maintained on file in the school office;
16. Notify users of known copyright infringing activities and deny access to or remove the material.

Electronic Communications System Access

1. Access to HCCS's electronic communications system is authorized to:

Board members, public charter school employees, and students in grades 3-8, with parent approval and when under the direct supervision of staff, and public charter school volunteers, public charter school contractors or other members of the public as authorized by the system coordinator or public charter school administrators consistent with HCCS's policy governing use of public charter school equipment and materials.

2. Students may be permitted to use HCCS's electronic communications system, when consistent with board policy and administrative regulations, for school and instructional related activities. Personal use of school-owned computers or devices including Internet and e-mail access is permitted when consistent with board policy and administrative regulations and when during the school day.

Staff and Board members may be permitted to use HCCS's electronic communications system to conduct business related to the management or instructional needs of the school or to conduct research related to education and when in compliance with Board policy and administrative regulations. Personal use of HCCS's system or school-owned computers or devices including Internet and e-mail access by school staff may be permitted when consistent with Oregon ethics laws, Board policy and administrative regulations[, when used on school property. Personal use of HCCS's system or school-owned computers or devices by Board members is prohibited.

Volunteers may be permitted to use HCCS's electronic communications system for personal use when consistent with Board policy, general use prohibitions and guidelines/etiquette and other applicable provisions of this administrative regulation.

General Use Prohibitions and Guidelines/Etiquette

Operation of HCCS's electronic communications system relies upon the proper conduct and appropriate use of system users. Students, staff and others granted system access are responsible for adhering to prohibitions and guidelines which require legal, ethical and efficient use of HCCS's system.

1. Attempts to upload, download, use, reproduce or distribute information, data, software or file share music, videos or other materials on HCCS's system in violation of copyright law or applicable provisions of use or license agreements;
2. Attempts to degrade, disrupt or vandalize HCCS's equipment, software, materials or data or those of any other user of HCCS's system or any of the agencies or other networks connected to HCCS's system;
3. Attempts to send, intentionally access or download any text file or picture or engage in any communication that includes, but not limited to, material which may be interpreted as:
 - a. Harmful to minors;
 - b. Obscene or child pornography as defined by law or indecent, vulgar, profane or lewd as determined by HCCS;
 - c. A product or service not permitted to minors by law;
 - d. Harassment, intimidation, bullying, menacing, threatening, or a bias incident;

- e. Constitutes insulting or fighting words, the very expression of which injures or harasses others, or which includes a symbol of hate;
 - f. A likelihood that, either because of its content or the manner of distribution, it will cause a material or substantial disruption of the proper and orderly operation of the school or school activity;
 - g. Defamatory, libelous, reckless or maliciously false, potentially giving rise to civil liability, constituting or promoting discrimination, a criminal offense or otherwise violates any law, rule, regulation, Board policy and/or administrative regulation.
- 4. Attempts to gain unauthorized access to any service via HCCS's system which has a cost involved or attempts to incur other types of costs without specific approval. The user accessing such services will be responsible for these costs;
 - 5. Attempts to post or publish personal student contact information unless authorized by the administrator/principal or designee and consistent with applicable Board policies pertaining to student directory information and personally identifiable information. Personal student contact information may include photograph, age, home, school, work or e-mail addresses or phone numbers or other unauthorized disclosure, use and dissemination of personal information regarding students;
 - 6. Attempts to arrange student meetings with anyone on HCCS's electronic communications system, unless authorized by the administrator/principal or designee or when consistent with school or educational related activities and with prior parent approval when necessary;
 - 7. Attempts to represent self on behalf of the school through use of HCCS's name in external communication forums, e.g., social media, chat rooms, without prior public charter school authorization;
 - 8. Attempts to use another individual's account name or password, failure to provide HCCS with individual passwords or to access restricted information, resources or networks to which the user has not been granted access.

9. Guidelines/Etiquette

System users will:

- a. Adhere to the same standards for communicating online that are expected in the classroom and consistent with Board policy and administrative regulations;
- b. Respect other people's time and cyberspace. Use real-time conference features such as video/talk/chat/Internet relay chat only as approved by the supervising teacher or system coordinator;
- c. Respect the privacy of others. Do not read the mail or files of others without their permission;
 - (1) Remember, there is no expectation of privacy when using e-mail. Others may read or access mail.
- d. Protect password confidentiality. Passwords are not to be shared with others. Using another user's account or password or allowing such access by another may be permitted with supervising teacher or system coordinator approval only;
- e. Communicate only with such users and/or sites as may be authorized by HCCS;

- f. Report violations of HCCS's policy and administrative regulation or security problems to the supervising teacher, system coordinator or administrator, as appropriate.

Complaints

HCCS's established complaint procedure in Board policy KL - Public Complaints and accompanying administrative regulation may be used to process complaints or concerns about violations of policy and administrative regulations.

Violations/Consequences

1. Students
 - a. Students who violate general system user prohibitions shall be subject to discipline up to and including expulsion and/or revocation of access to HCCS electronic communications system access up to and including permanent loss of privileges.
 - b. Violations of law may be reported to law enforcement officials and may result in criminal or civil sanctions.
 - c. Disciplinary action may be appealed by parents, students and/or a representative in accordance with established public charter school procedures.
2. Staff
 - a. Staff who violate general system user prohibitions shall be subject to discipline up to and including dismissal in accordance with Board policy, collective bargaining agreements and applicable provisions of law.
 - b. Violations of law may be reported to law enforcement officials and may result in criminal or civil sanctions.
 - c. Violations of applicable Teacher Standards and Practices Commission (TSPC), Standards for Competent and Ethical Performance of Oregon Educators will be reported to TSPC as provided by Oregon Administrative Rules (OAR) 584-020-0041.
 - d. Violations of ORS 244.040 may be reported to Oregon Government Ethics Commission (OGE).
3. Others
 - a. Other guest users who violate general electronic communications system user prohibitions shall be subject to suspension of system access up to and including permanent revocation of privileges.
 - b. Violations of law may be reported to law enforcement officials or other agencies, as appropriate, and may result in criminal or civil sanctions.

Information Content/Third Party Supplied Information

1. System users and parents of student system users are advised that use of HCCS's electronic communications system may provide access to materials that may be considered objectionable and inconsistent with HCCS's vision, mission and goals. Parents should be aware of the existence of such materials and monitor their student's home usage of HCCS's electronic communications system accordingly.
2. Opinions, advice, services and all other information expressed by system users, information providers, service providers or other third-party individuals are those of the providers and not HCCS.
3. Users of the electronic communications system may, with system coordinator approval, order services or merchandise from other vendors that may be accessed through HCCS's electronic communications system. These vendors are not affiliated with HCCS. All matters concerning merchandise and services ordered including, but not limited to, purchase terms, payment terms, warranties, guarantees and delivery are solely between the vendor and the electronic communications system user. HCCS makes no warranties or representation whatsoever with regard to any goods or services provided by the vendor. Public charter school staff and administration shall not be a party to any such transaction or be liable for any costs or damages arising out of, either directly or indirectly, the actions or inactions of vendors.
4. HCCS does not warrant that the functions or services performed by, or that the information or software contained on, the electronic communications system will meet the system user's requirements, or that the electronic communications system will be uninterrupted or error-free, or that defects will be corrected. HCCS's electronic communications system is provided on an "as is, as available" basis. HCCS does not make any warranties, whether express or implied including, without limitation, those of merchantability and fitness for a particular purpose with respect to any services provided by the electronic communications system and any information or software contained therein.

Sample Parent Letter

Dear Parents:

Your student needs your permission to use HCCS's electronic communications system. Your student will be able to communicate with other schools, colleges, organizations and individuals around the world through the Internet and other electronic information systems/networks.

With this educational opportunity also comes responsibility. Inappropriate system use may result in discipline, up to and including expulsion from school, suspension or revocation of your student's access to HCCS's electronic communications system, and/or referral to law enforcement officials.

Although HCCS is committed to practices that ensure the safety and welfare of system users, including the use of technology protection measures such as Internet filtering, please be aware that there may still be material or communications on the Internet that public charter school staff, parents and students may find objectionable. While HCCS neither encourages nor condones access to such material, it is not possible for us to eliminate that access completely.

Attached to this letter is an agreement for your student and you to read and sign stating agreement to follow HCCS's electronic communications system policy and administrative regulation. The school's policy IIBGA – Electronic Communications System and administrative regulation are accessible from the school's website or upon request and include provisions on, but are not limited to, student use under General Use Prohibitions and Guidelines/Etiquette and student-related rules under Violations and Consequences.

Please review HCCS's electronic communications policy and administrative regulation, and the provisions therein, carefully with your student and return the attached agreement form to the school office indicating your permission for your student to use HCCS's electronic communications system.

Sincerely,

System Coordinator/Administrator

Student Agreement for an Electronic Communications System Account

Student agreement must be renewed each academic year.

Student Section

Student Name _____ Grade _____

School _____

I have received notice of, read and agree to abide by the provisions adopted and included in the school's electronic communications system policy and administrative regulation and the HCCS Technology Check-Out Policy. I understand that violation of these provisions may result in discipline, up to and including expulsion from school, and/or suspension or revocation of system and technology access and related privileges, and/or referral to law enforcement officials.

Student Signature _____ Date _____

.....

Parent

I have received notice of and read the school's electronic communications system policy and administrative regulation and the HCCS Technology Check-Out Policy. I give my permission to HCCS to issue an account and technology for my student and certify that the information contained in this form is correct. I will monitor my student's use of the system and technology and the access to the Internet and will accept responsibility for supervision in that regard if and when my student's use is not in a school setting. In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my, or my student's use, or inability to use, the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature of Parent _____ Date _____

Email Address _____

Home Phone Number _____ Cell Number _____

Email Address _____

HCCS Technology Check-Out Policy

Device Ownership

HCCS retains sole right of ownership of the device. The devices are loaned to the faculty, staff, and students for educational purposes only for a one-year period, renewable each year.

Returning Devices

HCCS will collect and inspect devices and accessories when needed. Faculty, staff, and students who leave HCCS will be required to return their device and accessories. Failure to do so will result in the responsible party being billed for the full replacement cost.

Device Repair

If your device is broken or not working properly submit an IT request [here](#). If a loaner device is warranted, one will be issued until their device can be repaired or replaced.

General Care and Precautions

- Keep your device away from food and drink.
- Insert cords, cables, and removable storage devices carefully.
- Do not force connections.
- If the device has a screen, close the screen when carrying it.
- If using a Chromebook, close or shut down your Chromebook when not in use to conserve battery life.
- Use care when placing your device in a bag or locker -- protect the screen.
- Do not expose your device to extreme temperatures or direct sunlight for extended periods of time.
- Never leave the device in an unsecure location.
- Do not remove or attempt to alter the serial number or identification tags.
- Do not try to remove the keys, screen cover or plastic case.

Screen Care

- Rough treatment may damage your device screen; it is particularly sensitive to damage from excessive pressure.
- Do not place anything on the device that could put pressure on the screen.
- Be cautious when placing the device in your backpack.
- Do not poke the screen with any object not intended to be used with a touchscreen.
- Do not place anything on the keyboard before closing the lid (e.g. pens, pencils, or notebooks).
- Clean the screen with a soft, dry, anti-static, microfiber cloth or pre-moistened eyeglass cloth.
- Do NOT use window cleaner or water to clean your device.

Working Offline

Most devices and services are intended for use while connected to the internet. For Chromebooks, what you can do will be limited if it is not connected to the internet. To work offline, you need access to Apps and your files.

Internet Use at Home and Elsewhere

You can connect your device to wireless networks when you are not at school. HCCS I.T. cannot offer technical support for this due to the large variety of possible connections.

Sound

Keep the sound on your device muted except when needed. You can use headphones with permission from your parent AND teacher(s). If your school supplies you with headphones, you are responsible for their care and replacement if they are lost.

Printing

At School: Faculty and staff will be able to print from their device wirelessly. For students, printing directly from your device at school is not supported. When needed, teachers will provide you with methods to print your documents through another computer.

At Home: Chromebooks and iPads do not have a physical printer connection. It may be possible to print using wireless, depending on the capabilities of your home network and printer. Generally, the Google Cloud Print service will work for Chromebooks if you have a wireless network at home.

Managing Files and Saving Work

You are encouraged to save documents to your Google Drive or to an external memory device such as an SD card or USB flash drive. Saving to Google Drive will make the file accessible from any computer with internet access.

Software On Chromebooks

HCCS Chromebooks are supplied with the latest build of Google Chrome Operating System (OS), and other applications. The Chrome OS will automatically install updates when the computer is shutdown and restarted.

Chromebook software apps are delivered via the Chrome Web Store or the Google Play

Store and controlled by HCCS. These are web-based applications that do not require installation space on a hard drive. Some applications, such as Google Drive, are available for offline use. Do not delete or modify software on the Chromebook.

Schools may add software applications for use in a particular course. Schools may also remove applications when no longer needed.

Personalizing Your Device

Please do not draw, write, or put stickers, paint, or tape on your device. Keep it clean for the next person who will receive it.

Network Connectivity

The HCCS network might not be up and running 100% of the time. In the case that the network is down, HCCS will not be responsible for lost or missing data.

Inspection

You may be selected at random to provide your device for inspection. The purpose for inspection will be to check for proper care and maintenance as well as inappropriate material being carried into the school. All devices will be inspected when collected to identify damage and arrange for repair under HCCS's Damage and Loss Protection Plan.

Monitoring Use

Students should be aware that there should be no expectation of privacy when using HCCS network or equipment. When students access the HCCS network at school, HCCS will actively filter access and use third party solutions to monitor content for threats, violence, illegal activity, etc. Notifications are sent to the HCCS Tech Support and Administration regarding suspicious activity. If concerns are identified, disciplinary action and/or parent contact may occur.

Restoring A Device

If technical difficulties occur, the device may need to be reset to factory defaults and the OS reset to the state it was in when it was first checked out to the student. This will be done as a last resort.

In the event that the device needs to be reset, all user-created files stored online (e.g. Google Drive) or on an external miniSD card, USB flash drive will be intact after the operating system is restored. However, all other data (user accounts, music, photos, documents) stored on internal memory that has NOT been synced will not be restored.

Storing Devices

You are responsible for your device at all times. Keep it in a secure place. Do not stack things on top of it. Do not leave it unattended.

Device Damage And Loss Protection

You will assume full responsibility for any costs due to damage, loss, theft, or if the item is not returned to the school at the end of the school year. These costs could be as much as \$200 per incident, regardless of how it happens.

Thank you for reviewing the terms.

Please return your HCCS Technology Check-out Agreement form to agree to the terms.

This document was modeled after the BSD Device Resources web page, found below:
<https://www.beaverton.k12.or.us/departments/future-ready/chromebook-resources>

Agreement for an Electronic Communications System Account
(Nonschool System User)

I have received notice of, read and agree to abide by the provisions adopted and included in the school's electronic communications system policy and administrative regulation. I understand that violation of these provisions may result in suspension and/or revocation of system access and related privileges, and/or referral to law enforcement officials.

In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my use or inability to use the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature _____ Date _____

Home Address _____

Home Phone Number _____ Cell Number _____

Email Address _____ Date of Birth _____

Parent (Required if nonschool-system user is under 18 years of age)

I have received notice of and read HCCS's Electronic Communications System policy and administrative regulation. I give permission to the school to issue an account for my child and certify that the information contained on this form is correct. I will monitor my child's use of the system and the potential access to the Internet and will accept responsibility for supervision in that regard if and when my child's use is not in a school setting. In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my, or my child's use, or inability to use, the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature of Parent _____ Date _____

Email Address _____ Home Address _____

Home Phone Number _____ Cell Number _____

Agreement for an Electronic Communications System Account
(Staff System User)

I have received notice of, read and agree to abide by the provisions in the school's electronic communications system policy and administrative regulation. I understand that violation of these provisions may result in suspension and/or revocation of system access and related privileges, and may include discipline, up to and including dismissal, and/or referral to law enforcement officials.

I understand that I may use my personal electronic device (PED) for education related purposes and that certain school proprietary information may be downloaded to, or accessed through my PED. I agree that any school proprietary information downloaded on my PED will only be as necessary to accomplish school purposes, obligations or duties, and will be properly removed from my PED when the use on my PED is no longer authorized. I ensure that the PED in use is owned by me, and I am in complete control of the device at all times.

In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my use or inability to use the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature _____ Date _____

Email Address _____

Home Phone Number _____ Cell Number _____



Code: IIBGA
Adopted: 7/21/21

Electronic Communications System

HCCS electronic communications system will be used to provide statewide, national and global communications opportunities for staff and students and for the advancement and promotion of teaching and learning.

The administrator/principal will establish administrative regulations for the use of HCCS's electronic communications system including compliance with the following provisions of the Children's Internet Protection Act:

1. Technology protection measures, installed and in continuous operation, that protect against Internet access by both adults and minors to visual depictions that are obscene, child pornography or, with respect to the use of the computers by minors, harmful to minors;
2. Educating minors about appropriate online behavior, including cyberbullying awareness and response, and how to interact with other individuals on social networking sites and in chat rooms;
3. Monitoring the online activities of minors;
4. Denying access by minors to inappropriate matter on the Internet and World Wide Web;
5. Ensuring the safety and security of minors when using e-mail, social media, chat rooms and other forms of direct electronic communication;
6. Prohibiting unauthorized access, including so-called "hacking" and other unlawful activities by minors online;
7. Prohibiting unauthorized disclosure, use and dissemination of personal information regarding minors; and
8. Installing measures designed to restrict minors' access to materials harmful to minors.

Administrative regulations developed shall ensure compliance with privacy rights under applicable federal and state laws and regulations, including but not limited to the Age Discrimination in Employment Act of 1967 (ADEA), the Americans with Disabilities Act (ADA), the Genetic Information Nondiscrimination Act of 2008 (GINA) and the Health Insurance Portability and Accountability Act of 1996 (HIPPA).

Administrative regulations will be consistent with sound guidelines as may be provided by the Oregon Department of Education and/or the Oregon Government Ethics Commission, copyright law, and will include a complaint procedure for reporting violations.

Failure to abide by HCCS policy and administrative regulations governing use of the school’s electronic communications system may result in the suspension and/or revocation of system access. Additionally, student violations may result in discipline up to and including expulsion. Staff violations may result in discipline up to and including dismissal. Violations of law may be reported to law enforcement officials and may result in criminal or civil sanctions. Fees, fines or other charges may also be imposed.

END OF POLICY

Legal Reference(s):

[ORS 167.060 - 167.100](#)

[ORS Chapter 192](#)

[ORS 260.432](#)

[ORS 338.115\(1\)\(a\)](#)

[ORS 339.250](#)

[ORS 339.270](#)

[OR 581-021-0050](#)

[OAR 581-021-0055](#)

[OAR 584-020-0040](#)

[OAR 584-020-0041](#)

Children’s Internet Protection Act, 47 U.S.C. §§ 254 (h) and (l) (2018); 47 C.F.R. Section 54.520 (2019).

Copyrights, 17, U.S.C. §§ 101-1332 (2018); 19 C.F.R. Part 133 (2020).

Safe and Drug-Free Schools and Communities Act, 20 U.S.C. §§ 7101-7117 (2018).

Drug-Free Workplace Act of 1988, 41 U.S.C. §§ 8101-8107 (2018); 34 C.F.R. Part 84, Subpart F (2020).

Controlled Substances Act, 21 U.S.C. § 812, Schedules I through V (2018); 21 C.F.R. §§ 1308.11-1308.15 (2020).

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213 (2018); 29 C.F.R. Part 1630 (2020); 28 C.F.R. Part 35 (2020).

Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g (2018); 34 C.F.R. Part 99 (2020).

Every Student Succeeds Act, 20 U.S.C. § 7131 (2018).

Americans with Disabilities Act Amendments Act of 2008, 42 U.S.C. §§ 12101-12133 (2018).

Cross Reference(s):

GBN/JBA - Sexual Harassment

GBNA - Hazing, Harassment, Intimidation, Bullying, Menacing, or Cyberbullying – Staff

GBNAA/JHFF - Reporting Requirements for Suspected Sexual Conduct with Students

JHFE - Reporting of Suspected Abuse of a Child

JHFF/GBNAA - Reporting Requirements for Suspected Sexual Conduct with Students



Code: IICA
Adopted: 7/21/21

Field Trips and Special Events**

HCCS recognizes the value of special activities to the total school program. Further, students need to be allowed to participate in and profit from carefully planned learning experiences which fall outside the normal school program/day.

Field trips and other curricular/cocurricular activities involving travel may be authorized by the administrator/principal when such trips or activities contribute to the achievement of desirable educational/social/cultural goals.

In planning and authorizing such trips, primary consideration will be given to educational values derived, the safety and welfare of students involved, community standards of conduct and behavior on the part of all participants and the selection of appropriate adult supervision, either from within the school staff or from the parent and community volunteer pool.

Written parental permission must be obtained. The signed form showing parental approval and acknowledgment of student conduct guidelines will be maintained on file.

The administration will develop rules to ensure both students and adult supervisors are acquainted with the standards for conduct while representing the school. Such rules will reinforce school policy in areas such as alcohol, tobacco and unlawful drug use, procedure to be used in cases of illness or accident, and methods for communicating with administrators and/or parents in discipline and emergency situations.

All out-of-county travel must have prior Board approval. Such approval is predicated on an acceptable plan for travel arrangements, parental involvement, orientation of students and supervisors and support of the administrator/principal.

END OF POLICY

Legal Reference(s):

[ORS 336.014](#)

[ORS 338.115\(2\)](#)

[ORS 339.240 to -339.250](#)

Cross Reference(s):

EEAE - Student Transportation in Private Vehicle
KK - Visitors to School Facilities



Code: IKF-AR
Adopted: 7/21/21

Oregon Graduation Requirements

Diploma

The minimum credit requirements for an Oregon high school diploma for students in grades 9 through 12 is 24 credits which include at least:

1. Four credits of English language arts (shall include the equivalent of one unit in written composition);
2. Three credits of mathematics (shall include one unit at the Algebra I level and two units that are at a level higher than Algebra I);
3. Three credits of science;
4. Three credits of social sciences (including history, civics, geography and economics (including personal finance));
5. One credit in health education;
6. One credit in physical education; and
7. Three credits in career technical education, the arts or world languages (units shall be earned in any one or a combination).

A school district or public charter school may modify the number of units required in specific areas but may never be less than 24 credits. Students may be offered credit options provided the method for obtaining such credit is described in the student's personal education plan and the credit is earned by meeting requirements described in Oregon Administrative Rule (OAR) 581-022-2025.

In addition to credit requirements a student must:

1. Demonstrate proficiency in the Essential Skills of reading, writing, and applying mathematics in a variety of settings;
2. Develop an education plan and build an education profile;
3. Demonstrate extended application through a collection of evidence; and

4. Participate in career-related learning experiences outlined in the education plan.

Modified Diploma

A modified diploma will be awarded only to students who have demonstrated the inability to meet the full set of academic standards adopted by the State Board of Education for a high school diploma even with reasonable modifications and accommodations. A modified diploma may only be awarded to a student who meets the eligibility criteria listed below and other criteria, if applicable, outlined in OAR 581-022-2010(3):

1. Has a documented history of an inability to maintain grade level achievement due to significant learning and instructional barriers; or
2. Has a documented history of a medical condition that creates a barrier to achievement.

Having met the above eligibility criteria, to the minimum credit requirement for students in grades 9 through completion of high school, is 24 credits which at least shall include:

1. Three credits in English language arts;
2. Two credits in mathematics;
3. Two credits in science;
4. Two credits in social sciences (which may include history, civics, geography and economics (including personal finances));
5. One credit in health education;
6. One credit in physical education; and
7. One credit in career technical education, the arts or a world languages (units may be earned in any one or a combination).

Students may earn additional credits to earn a modified diploma pursuant to OAR 581-022-2010.

In addition to credit requirements a student must:

1. Develop an education plan and build an education profile; and
2. Demonstrate extended application through a collection of evidence.

A student must also demonstrate proficiency in the Essential Skills with reasonable modifications and accommodations.

Modifications can be made to the assessment for students who seek a modified diploma when the following conditions are met:

1. For a student on an individualized education plan (IEP) or Section 504 plan, any modifications to work samples must be consistent with the requirements established in the IEP or 504 plan.

Modifications include practices and procedures that compromise the intent of the assessment through a change in learning expectations, construct, or content that is to be measured, grade level standard, or measured outcome of the assessment. This means that IEP or 504 school teams responsible for approving modifications for a student's assessment may adjust the administration of the assessment and/or the assessment's achievement standard;

2. For a student not on an IEP or 504 plan, any modifications to work samples must have been provided to the student during his/her instruction in the content area to be assessed, and in the year in which the student is being assessed and modifications must be approved by the school team that is responsible for monitoring the student's progress toward the modified diploma.

Students not on an IEP or a Section 504 Plan may not receive a modified Smarter Balanced assessment.

A student's school team shall decide that a student should work toward a modified diploma no earlier than the end of grade six and no later than two years before the student's anticipated exit from high school. A student's school team may decide to revise a modified diploma decision.

A student's school team may decide that a student who was not previously working toward a modified diploma should work toward one when the student is less than two years from anticipated exit from high school if the documented history has changed.

Beginning in grade five or beginning after a document history to qualify for a modified diploma, the public charter school shall annually provide to the parents or guardians of the student, information about the availability and requirements of a modified diploma.

A student may not be denied the opportunity to pursue a diploma with more stringent requirements than an modified diploma for the sole reason the student has the documented history listed under modified diploma requirements.

Extended Diploma

An extended diploma will be awarded only to students who have demonstrated the inability to meet the full set of academic content standards adopted by the State Board of Education for a diploma while receiving modifications and accommodations. To be eligible for an extended diploma, a student must:

1. While in grade nine through completion of high school, complete 12 credits, which may not include more than six credits in a self-contained special education classroom and will include:
 - a. Two credits of mathematics;
 - b. Two credits of English;
 - c. Two credits of science;
 - d. Three credits of history, geography, economics or civics;
 - e. One credit of health;
 - f. One credit of physical education;
 - g. One credit of the arts or a world language.

2. Have a documented history of:
 - a. An inability to maintain grade level achievement due to significant learning and instructional barriers;
 - b. A medical condition that creates a barrier to achievement; or
 - c. A change in the student's ability to participate in grade level activities as a result of a serious illness or injury that occurred after grade eight.

Beginning in grade five or beginning after a documented history to qualify for an extended diploma, the public charter school shall annually provide to the parents or guardians of the student, information about the availability and requirements of an extended diploma.

A student may not be denied the opportunity to pursue a diploma with more stringent requirements than a extended diploma for the sole reason the student has the documented history listed under extended diploma requirements.

Alternative Certificates

Alternative certificates will be awarded to students who do not satisfy the requirements for a diploma, a modified diploma or an extended diploma if the students meet minimum credit requirements established by the public charter school.

Beginning in grade five or beginning after a documented history to qualify for an alternative certificate, the public charter school shall annually provide to the parents or guardians of the student, information about the availability and requirements of an alternative certificate.

Assessment

Students may opt-out of the Smarter Balanced or alternate Oregon Extended Assessment by completing the Oregon Department of Education's Opt-out Form¹ and submitting the form to the public charter school.

¹ www.ode.state.or.us: Educator Resources > Student Assessment > Test Administration > Forms > 2018-2019 30-day notice and opt-out form



Code: **IKF**
Adopted: 7/21/21

Oregon Graduation**

HCCS will provide age-appropriate and developmentally appropriate literacy instruction to all students through grade 8.

HCCS shall administer local performance and statewide assessments in accordance with law.

Beginning in grade five or beginning after a documented history to qualify for a modified diploma, an extended diploma, or an alternative certificate has been established, the public charter school will annually provide to the parents or guardians of the student, information about the availability and requirements of a modified diploma, an extended diploma, and an alternative certificate (*See* administrative regulation IKF-AR - Oregon Minimum Graduation Requirements).

END OF POLICY

Legal Reference(s):

ORS 329.045	OAR 581-021-0009	OAR 581-022-2030
ORS 329.451	OAR 581-022-2000	OAR 581-022-2115
ORS 329.479	OAR 581-022-2010	OAR 581-022-2120
ORS 339.115	OAR 581-022-2015	OAR 581-022-2505
ORS 339.505	OAR 581-022-2020	
ORS 343.295	OAR 581-022-2025	

Test Administration Manual, published by the OREGON DEPARTMENT OF EDUCATION.



Code: IKI
Adopted: 7/21/21

Academic Integrity

The Board encourages the development of critical thinking skills in students, to show them the benefits of setting and accomplishing goals and to help the student realize the satisfaction and reward of learning.

Students are expected to put forth their best effort on tests and assignments. Students are expected to demonstrate respect toward their instructors and peers by encouraging and facilitating learning. Engaging in various forms of cheating or academic dishonesty does not permit students to realize the full extent of the educational experience or their full academic potential.

Students are encouraged to converse with others and assist other students except when it is inconsistent with testing or assignment instructions. This dialogue or exchange of ideas both inside and outside the classroom helps facilitate learning by everyone. Assisting others is prohibited when it would constitute academic dishonesty.

Violation of this policy may result in discipline as deemed appropriate by the instructor or administration, based on the nature and seriousness of the offense.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)
[ORS 339.240](#)

[ORS 339.250](#)

[OAR 581-021-0050 to -0075](#)



Code: IL
Adopted: 7/21/21

Assessment Program**

The HCCS assessment program shall be designed for the purpose of determining school program improvement and individual student needs including the requirements of the Oregon Administrative Rules. Each year the school shall determine each student's progress toward achieving federal, state and local achievement requirements.

Assessments shall be used to measure the academic content standards and Essential Skills and to identify students who meet or exceed the performance standards and Essential Skills adopted by the State Board of Education.

Accordingly, HCCS shall maintain the following assessment program:

1. Criterion-reference assessments, including performance-based assessments, content-based assessments and other valid methods as may be required by state and federal requirements;
2. Assessment of Essential Skills;
3. Individual diagnostic and ability evaluations in all grades when students have been referred and parental permission obtained;
4. Assessments by individual teachers;
5. Optional public charter school and grade level-wide assessments, as recommended by the administrator and as approved by the Board.

It is the intent of the Board that progress be measured in a manner that clearly enables the student and parents to know whether the student is making progress toward meeting or exceeding academic content standards and Essential Skills. School and individual results shall be reported to the Board, parents and the community, as prescribed by law.

HCCS shall not discriminate in the methods, practices and materials used for assessment, evaluating and counseling students on the basis of race, color, national origin, religion, sex, sexual orientation, age, disability or marital status. Discrimination complaints shall be processed in accordance with established procedures. Staff will receive in-service education in the use of designated assessments and interpretation of assessment results.

A student may opt-out of the Smarter Balanced and/or alternate Oregon Extended Assessments in English language arts and mathematics as provided in state law. HCCS shall provide the required notice and necessary forms to the student. The school shall provide supervised study time for students who are

excused from participating in the assessment. A student may be excused from the Oregon Statewide Assessment Program for disability or religious reasons. Parents and adult students will be provided the required notices¹ that include a time frame in which statewide assessments will take place, and an adult student's or parent's right to request an exemption from taking the statewide summative assessments.

HCCS shall establish conduct and discipline consequences for student-initiated test impropriety. "Student-initiated test impropriety" means student conduct that is inconsistent with the *Test Administration Manual* or accompanying guidance; or results in a score that is invalid.

The administrator/principal shall ensure a periodic review and evaluation of the school's assessment program is conducted.

END OF POLICY

Legal Reference(s):

¹ Public charter schools are required to provide notice twice each year: once at the beginning of the year; and second time at least 30 days prior to the administration of the test.

[ORS 40.245](#)
[ORS 326.565](#)
[ORS 326.575](#)
[ORS 329.479](#)
[ORS 329.485](#)
[ORS 336.187](#)

[ORS 659.870](#)
[ORS 338.115 \(2\)](#)

[OAR 581-021-0030](#)
[OAR 581-022-2030](#)
[OAR 581-022-2060](#)

[OAR 581-022-2100](#)
[OAR 581-022-2250](#)
[OAR 581-022-2270](#)
[OAR 581-022-2310](#)

Family Educational Rights and Privacy Act of 1974, 20 U.S.C. § 1232g (2012); Family Educational Rights and Privacy, 34 C.F.R. Part 99 (2017).
Protection of Pupil Rights, 20 U.S.C. § 1232h (2012); Student Rights in Research, Experimental Programs and Testing, 34 C.F.R. Part 98 (2017).
Individuals with Disabilities Education Act (IDEA), 20 U.S.C. §§ 1400-1419 (2012).
Every Student Succeeds Act, 20 U.S.C. §§ 6311-6322 (2012).



Code: INDB
Adopted: 7/21/21

Flag Displays and Salutes

A United States (U.S.) flag and an Oregon State flag¹ of an appropriate size shall be displayed on or near each school building under the control of the Board or used by HCCS, during school hours, except in unsuitable weather and at any other time the Board deems proper.

A National League of Families' POW/MIA flag of appropriate size shall be displayed on or near each school building when required by state law² and in the same manner as a U.S. and Oregon State flag.

HCCS shall obtain a U.S. flag of an appropriate size for each classroom to display.

Students shall receive instruction in respect for the national flag, and be provided an opportunity to salute the U.S. flag at least once each week during the school year by reciting *The Pledge of Allegiance*.

Upon request from an Oregon Sovereign tribal government, a flag representing the sovereign tribal government must be displayed on, near, or within a school building during school hours. The location of the flag will be determined by the school in consultation with the requesting sovereign tribal government.

END OF POLICY

Legal Reference(s):

[ORS 186.110](#)
[ORS 336.067](#)

[ORS 338.115](#)
[ORS 339.875](#)

[OAR 581-021-0043](#)

W. Va. St. Bd. of Educ. v. Barnette, 319 U.S. 624 (1943).

¹ “A public charter school governing body is required to procure and display a flag upon or near a public charter school building if: 1) the public charter school is located in a public building; or 2) the public charter school is located in a private building and proper equipment is readily available for the purpose of displaying the flag.” (ORS 339.875)

² The National League of Families' POW/MIA flag must only be displayed on or near public buildings that have existing flagpoles or other infrastructure installed to properly display the U.S., Oregon State, and National League of Families' POW/MIA flags simultaneously. However, all public buildings on or near where it is customary and suitable to display the U.S. flag that are newly constructed on or after January 1, 2018 shall include sufficient infrastructure to properly display the U.S. flag, Oregon State flag, and National League of Families' POW/MIA flag simultaneously.



Code: ING-AR
Revised/Reviewed: 7/21/21

Animals in School Facilities

If the animal is a service animal¹, please answer the following questions:

1. Is the service animal required due to a disability? _____

2. What work or task has the service animal been trained to perform²? _____

If an animal is not a service animal, the school staff may request emergency contact information.

¹ The American with Disabilities Act definition of “service animal” means any dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability. Companion and comfort animals are not considered service animals. Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition. The work or tasks performed by a service animal must be directly related to the individual’s disability. Examples of work or tasks include, but are not limited to, assisting individuals who are blind or have low vision with navigation and other tasks, alerting individuals who are deaf or hard of hearing to the presence of people or sounds, providing non-violent protection or rescue work, pulling a wheelchair, assisting an individual during a seizure, alerting individuals to the presence of allergens, retrieving items such as medicine or the telephone, providing physical support and assistance with balance and stability to individuals with mobility disabilities, and helping persons with psychiatric and neurological disabilities by preventing or interrupting impulsive or destructive behaviors. The crime deterrent effects of an animal’s presence and the provision of emotional support, well-being, comfort, or companionship do not constitute work or tasks for the purposes of this definition. The law and its regulations also make an allowance for miniature horses.

² HCCS may request this information if the nature of the work or task the assistance animal is trained, or is being trained to do or perform, is not readily apparent.



Code: ING
Adopted: 7/21/21

Animals in School Facilities

Only service animals¹ serving persons with a disability and animals approved by the administrator/principal or designee that are part of an approved school curriculum or cocurricular activity are allowed in school facilities.

Approved animals must be adequately cared for and appropriately secured. Only the staff member or student designated by the administrator/principal or designee are to handle the animals.

If animals are to be kept in the classroom on days when classes are not in session, arrangements must be made for their care.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)
[ORS 659A.400](#)

[OAR 581-053-0010](#)
[OAR 581-053-0230\(9\)\(j\)](#)
[OAR 581-053-0330\(1\)\(q\)](#)

[OAR 581-053-0430\(16\)](#)
[OAR 581-053-0531\(15\)](#)

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213 (2012); 28 CFR §§ 35.104, 35.136 (2017).
Americans with Disabilities Act Amendments Act of 2008.

¹ The American with Disabilities Act definition of “service animal” means any dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual or other mental disability. Companion and comfort animals are not considered service animals. Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition. The work or tasks performed by a service animal must be directly related to the individual’s disability. Examples of work or tasks include, but are not limited to, assisting individuals who are blind or have low vision with navigation and other tasks, alerting individuals who are deaf or hard of hearing to the presence of people or sounds, providing non-violent protection or rescue work, pulling a wheelchair, assisting an individual during a seizure, alerting individuals to the presence of allergens, retrieving items such as medicine or the telephone, providing physical support and assistance with balance and stability to individuals with mobility disabilities, and helping persons with psychiatric and neurological disabilities by preventing or interrupting impulsive or destructive behaviors. The crime deterrent effects of an animal’s presence and the provision of emotional support, well-being, comfort or companionship do not constitute work or tasks for the purposes of this definition. The law and its regulations also make an allowance for miniature horses.